

Shailendra Pratap Singh v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 7 November 2016 · Writ-C No. 52920 of 2016 · **Writ disposed; apply in prescribed form; licensee to decide in 7 days.**

HEADNOTE

A tenant whose supply had been disconnected after a landlord dispute sought mandamus to sanction a new electricity connection. The Court did not order release. It directed the petitioner to apply within two days on the prescribed U.P. Electricity Supply Code, 2005 form and complete the specified formalities, and directed the licensee, if those formalities were completed, to process the application and pass appropriate orders within seven days.

FACTUAL SUMMARY

The petitioner, occupying tenanted premises, approached the Allahabad High Court seeking a mandamus that the second and third respondents sanction an electricity connection. Supply to his portion of the premises had been disconnected because of a dispute with the landlord. He had applied for a connection only on 21 October 2016. Counsel for the distribution licensee submitted that under the U.P. Electricity Supply Code, 2005 a connection application must be on the prescribed form and can be considered only after the specified formalities are completed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

prescribed application for a new connection

HOLDING

Mandamus to sanction a connection was refused on the papers. The petitioner was directed to submit, within two days, an application in the prescribed form and to complete the formalities required under the U.P. Electricity Supply Code, 2005. If those formalities were completed, the licensee was to process the application and pass appropriate orders within seven days. Entitlement to the connection was not decided. ¶ 1-2

FLAG order invokes the 2005 Supply Code generally; no clause number given

PRINCIPLE TAGS

relegate-to-statutory-remedy A tenant whose supply had been disconnected after a landlord dispute sought mandamus to sanction a new electricity connection. The Court did not order release. It directed the petitioner to apply within two days on the prescribed U.P.. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAIM FOR SANCTION OF A CONNECTION, INCLUDING ANY INDEPENDENT TENANT RIGHT AFTER A LANDLORD DISPUTE

Disconnection was attributed to a landlord dispute; the writ was disposed by a prescribed-form application and a time-bound consideration, without granting or refusing the connection. ¶ 1-2